

Form 15-29
(Rule 15-29)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

ANSWER TO APPLICATION FOR VARIATION OF A FINAL ORDER

1 I do not oppose the granting of the following remedies sought in the Application for Variation of a Final Order: *(Set out claims that are not opposed.)*

2 I oppose the following claims for a remedy:
(Set out claims that are opposed.)

3 The particulars and status of all other legal proceedings commenced between the petitioner/respondent and me with respect to the marriage, cohabitation, parenting or support, maintenance are:

4 The particulars and status of all other civil and criminal legal proceedings, past or on-going, that may be relevant to the safety, security or well-being of the children are:

5 The particulars of all other orders or agreements relating to any child in the care of the petitioner/respondent and me are:

6 The particulars and status of all other legal proceedings that have resulted in an existing order, recognizance or undertaking that restricts contact or communication between the petitioner/respondent and me, or any other member of our respective households, are: *(Include date and terms of order, recognizance or undertaking.)*

7 My Financial Statement in Form 15-47:
(select applicable paragraph)

☐ is filed in this proceeding.

or

☐ is not filed in this proceeding because:

☐ a claim for child support:

☐ has not been made.

or

☐ has been made and the petitioner/respondent and I have agreed on the amount to be paid for child support and on the annual income of each of us who would be required to provide income information under the Federal Child Support Guidelines, and an Agreement as to Child Support in Form 15-48B is filed in this proceeding.

and

☐ a claim for spousal support:

☐ has not been made.

or

☐ has been made and the petitioner/respondent and I have agreed on the amount to be paid for spousal support, and a Waiver of Financial Statements in Form 15-48A is filed in this proceeding.

7.1 *(If there is a claim for variation of a final order under The Family Property Act, add paragraph 7.1)*

A property statement setting out the particulars of the property that the petitioner/ respondent and I own or hold an interest in:

☐ in Form 15-49 is filed in this proceeding.

or

☐ is not filed in this proceeding because the petitioner/respondent and I have agreed on the relief, and a Waiver of Property Statements in Form 15-50 is filed in this proceeding.

8 I contest the Application for Variation of a Final Order based on the following material facts: *(Set out in separate, consecutively numbered paragraphs a statement of the material facts relied on for contesting the Application for Variation of a Final Order, but not the evidence by which those facts might be proved.)*

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of party)

STATEMENT OF PETITIONER [or RESPONDENT]

(To be signed by the party filing this answer if the application is under the Divorce Act.)

I, _____, the petitioner (or respondent)
in this proceeding, certify that I am aware of my duties pursuant to sections 7.1 to 7.5 of the
Divorce Act (Canada).

(signature of party)

Information Note

Sections 7.1 to 7.5 of the *Divorce Act* (Canada) state as follows:

Best interests of child

7.1 A person to whom parenting time or decision-making responsibility has been allocated in respect of a child of the marriage or who has contact with that child under a contact order shall exercise that time, responsibility or contact in a manner that is consistent with the best interests of the child.

Protection of children from conflict

7.2 A party to a proceeding under this Act shall, to the best of their ability, protect any child of the marriage from conflict arising from the proceeding.

Family dispute resolution process

7.3 To the extent that it is appropriate to do so, the parties to a proceeding shall try to resolve the matters that may be the subject of an order under this Act through a family dispute resolution process.

Complete, accurate and up-to-date information

7.4 A party to a proceeding under this Act or a person who is subject to an order made under this Act shall provide complete, accurate and up-to-date information if required to do so under this Act.

Duty to comply with orders

7.5 For greater certainty, a person who is subject to an order made under this Act shall comply with the order until it is no longer in effect.

STATEMENT OF LAWYER

(To be completed if the party filing this answer is represented by a lawyer and the application is being made pursuant to the Divorce Act, The Children's Law Act, 2020, The Family Maintenance Act, 1997 or The Family Property Act.)

I, _____, the lawyer for _____, the petitioner (or respondent) in this proceeding, certify to this Court that I have complied with the requirements of section 7.7 of the *Divorce Act* (Canada) in discussing with my client the matters of spousal reconciliation, family dispute resolution services, and my client's duties under the *Divorce Act*. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

I further certify to this Court that I have complied with (as applicable):

- (a) subsection 20(1) of *The Children's Law Act, 2020*;
- (b) subsection 16(1) of *The Family Maintenance Act, 1997*;
- (c) subsection 44.1(1) of *The Family Property Act*;

in discussing with my client the advisability of using alternative methods to resolve matters, and I have informed my client of the collaborative law services and mediation services known to me that might assist in resolving matters. *(If the circumstances of the case are of such a nature that it would clearly not be appropriate to so comply, set out the circumstances.)*

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of lawyer)

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

or

If the party is self-represented

Name of party: _____

Address for service: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

Amended. Gaz. 13 Oct. 2023.